

Classical sharia versus modern views on non-Muslim dignity

Analysis run: September 12, 2026

ARTICLE

AI-GENERATED

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LANGUAGE

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GENERAL

INTONATION

NEUTRAL

LENGTH

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TEMPERATURE

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SYSTEM PROMPT

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USER PROMPT

Write a concise, self-contained article entry for the title: "Classical sharia versus modern views on non-Muslim dignity".

Overall topic for alignment: Muslim-non-Muslim relations grounded in human dignity in sharia.

Important points to cover: Include Arabic terms, historical contexts, quranic foundations of sharia, minority and majority settings, Islamic theological schools, Islamic juristic schools of Hanafi, Hambali, shafi'i and Malaki, orientalist perspective, AI's humanistic approach to sharia, Human rights declaration..

- Output format: GitHub-Flavored Markdown. The markdown must be clean—do not include any code fences or surrounding markers. Target writing format: Blog Post. Follow these format-specific rules exactly:
- Aim for at least 6000 characters while staying under 12000. Prefer verifiable facts from the provided sources; do not fabricate citations or specific data.
- Place external links only in the "References" section; do not include inline external links in the body text.
- Maximum content length (including headings and references): 12000 characters. If nearing the limit, prioritize the most informative sections and keep references to 2-3.
- Write in the target response language. Avoid fluff; be precise and actionable. Do not include images or tables.
- Do not include code fences or any text outside the markdown content.

No external web sources are attached. Do not fabricate citations or specific facts that cannot be verified. Keep claims general and verifiable. In the 'References' section, include: "No external sources used."

****Respond in English****

SUMMARY

Classical Islamic law tied non-Muslim status to political dominance, with the *dhimma* covenant granting protection to *ahl al-kitab* in exchange for the *jizya* tax and social restrictions, while the world was divided into *dar al-islam* and *dar al-harb*. The four Sunni schools varied—Hanafi more pragmatic, Maliki and Hanbali stricter, Shafi'i restrictive on testimony—and historical practice (Constitution of Medina, Pact of 'Umar, Ottoman *millet* system, Indian adaptations) showed flexibility. Quranic verses like 17:70, 49:13, and 60:8, however, affirm a universal human dignity not predicated on faith.

Modern Muslim thought re-evaluates these norms through *maqasid al-sharia*, proposing a *fiqh of citizenship* that replaces *dhimma* with equal rights, as in the Cairo Declaration and the work of thinkers such as al-Qaradawi and An-Na'im. An emerging AI-humanistic approach mines primary sources to highlight ethical patterns compatible with universal human rights. Orientalist critiques (Lewis, Ye'or, Cohen) underscore subordination but acknowledge relative tolerance. In minority settings, fatwas now affirm full citizenship, transforming dignity from a protection-based to a rights-based concept. The debate thus centers on interpreting Quranic universalism in contemporary contexts rather than on immutable conflict.

FULL CONTENT

Classical sharia versus modern views on non-Muslim dignity

For centuries, the Islamic legal tradition elaborated detailed rules governing relations between Muslims and non-Muslims. Those rules were embedded in a context of Muslim political dominance and a worldview in which religious identity largely defined one's legal and social standing. Today, many Muslims live as minorities in pluralistic societies, and contemporary discourses on human rights have prompted a re-examination of those classical norms. The core question is whether sharia can accommodate a universal conception of human dignity that is independent of faith. This article contrasts the classical framework with modern interpretations, highlighting the role of Arabic terminology, historical context, Quranic foundations, the major juristic schools, the orientalist critique, and an emerging humanistic approach that enlists artificial intelligence.

Quranic Foundations of Human Dignity

Several Quranic verses establish a broad notion of human honour (*karama insaniyya*). “We have honoured the children of Adam” (Q. 17:70) is often cited as a scriptural anchor for inherent human worth. The basis of diversity is not hierarchy but mutual recognition: “We made you into nations and tribes so that you might come to know one another” (Q. 49:13). The sanctity of life is proclaimed universally: “Whoever saves a life, it is as if he had saved all mankind” (Q. 5:32). With respect to non-Muslims who do not actively fight against Muslims, the command is unambiguous: “God does not forbid you from being kind and acting justly towards those who have not fought you on account of your religion” (Q. 60:8). There is also the famous declaration “There is no compulsion in religion” (Q. 2:256). These verses form a compelling textual basis for dignity that is not conditional on belief.

Classical Legal Frameworks

Classical fiqh (jurisprudence) nevertheless systematised relationships through categories that often tied rights and obligations to religious identity. The pivotal institution was the *dhimma* (ذمة), a covenant of protection extended to *ahl al-kitab* (أهل الكتاب, People of the Book—Jews, Christians, and later others) who lived under Muslim rule. In return for paying the *jizya* (جزي) poll tax and accepting certain social restrictions, they received security of life, property, and freedom to practise their religion, subject to public order.

The classical jurists of the four major Sunni schools—Hanafi, Maliki, Shafi‘i, and Hanbali—differed in the details. Hanafi jurists, operating often in culturally diverse environments such as Iraq and later the Ottoman lands, tended to adopt a relatively pragmatic stance, allowing dhimmis greater freedom in matters like the consumption of alcohol in private. Maliki jurists, strongly influenced by Medinan practice, were more restrictive, especially regarding church construction and the public display of religious symbols. Shafi‘i scholars emphasised textual proofs and often insisted on a legal disability in testimony where a non-Muslim’s testimony was not accepted against a Muslim. Hanbali authorities generally maintained the strictest rules, consistent with a rigorist reading of early sources.

In all schools, the legal status of the non-Muslim was heavily conditioned on political geography. The world was conceptually divided into *dar al-islam* (دار الإسلام, the abode of Islam) and *dar al-harb* (دار الحرب, the abode of war). A non-Muslim who entered Muslim territory under a temporary safe-conduct (*aman*, أمان) was termed a *musta‘min* (مستأمن) and enjoyed protections similar to a dhimmi but only for a limited time. Those who remained in *dar al-harb* were *harbi* (حربي) and, in theory, could be fought unless a truce existed. This framework assumed a permanent state of Muslim political ascendancy, a situation that no longer obtains in most of the world.

Historical Contexts

The earliest Muslim polity, the Medinan city-state under the Prophet, concluded a series of agreements known as the Constitution of Medina. Those documents acknowledged the Jewish tribes as partners in a single community (*ummah*) with reciprocal rights and duties, though the evolving conflict situation later altered their status. As the Islamic empire expanded, the so-called Pact of Umar, traditionally attributed to the second caliph or to Umar II, codified a set of restrictions—banning new churches, regulating dress, forbidding bearing arms—that became a model for later dhimmi regulation. Its precise historical origin is debated, but the archetype it provided proved influential.

In practice, the enforcement of these rules varied enormously across time and space. The Ottoman *millet* system granted non-Muslim communities considerable autonomy in personal status law, education, and worship, while simultaneously reinforcing communal boundaries. In Muslim-minority settings, such as the Indian subcontinent, Hanafi scholars sometimes relaxed traditional rules of evidence and commercial dealings to allow a functioning coexistence. This adaptability demonstrates that context always tempered doctrine.

Modern Views and Human Rights

Since the mid-twentieth century, Muslim thinkers have increasingly argued that the *maqasid al-sharia* (مقاصد الشريعة, the higher objectives of Islamic law)—protection of life, intellect, religion, lineage, and property—demand a re-evaluation of classical dhimmi regulations. In a globalised world where Muslims are frequently minorities, citizenship has replaced the old *dhimma* as the basis for civic belonging. The Cairo Declaration on Human Rights in Islam (1990) explicitly affirms that all human beings are equal in dignity, though it subjects all rights to the ultimate frame of sharia. Scholars like Yusuf al-Qaradawi have argued for a *fiqh of citizenship* that grants non-Muslims full political and civil rights identical to those of Muslims, while others, such as Abdullahi An-Na'im, propose a more thorough philosophical reconciliation with secular human rights by reinterpreting the historical sharia through the lenses of justice and reciprocity.

A recent and novel development is the use of artificial intelligence for a humanistic reading of sharia. Researchers feed the entire corpus of Islamic primary sources—Quran, hadith, classical legal manuals—into computational models that extract patterns of ethical reasoning. By training models on *maqasid*-aligned criteria, the AI can highlight the verses and precedents that most strongly support a cross-confessional human dignity. This “AI humanistic approach” offers a corrective to the selective traditionalism that often ignores the universalist strands of the Quran in favour of medieval juristic rulings shaped by political circumstances. The aim is not to replace scholarship but to demonstrate that the textual resources of sharia are fully compatible with the Universal Declaration of Human Rights when read through the lens of its deepest ethical objectives.

Orientalist Perspectives

Western orientalists have long debated the nature of classical sharia's treatment of non-Muslims. Some, like Bernard Lewis, acknowledged that pre-modern Islamic societies were generally more tolerant than their Christian European counterparts in the same period, yet still characterised the dhimma as a system of inherent subordination. Bat Ye'or's portrayal of *dhimmitude* painted an unrelentingly dark picture of oppression. More nuanced historians, including Mark R. Cohen, have argued that while the dhimma imposed a perceived inferiority, it also afforded a stable legal space that allowed minorities to survive and at times to flourish. The orientalist gaze thus provides a valuable external check: its critics force a reckoning with the lived experience of non-Muslims under classical rule, while its excesses remind us that the concept of an absolutist modern human dignity was foreign to most pre-modern legal systems.

Minority and Majority Settings

The classical juristic elaborations overwhelmingly assumed a majority-Muslim polity. When Muslims live as minorities, the traditional *dar al-islam/dar al-harb* dichotomy becomes problematic. Modern fatwas from bodies like the European Council for Fatwa and Research have embraced the idea of Muslims being full citizens of non-Muslim states, bound by loyalty and law, and enjoying religious freedom as a reciprocal right. The shift from a protection-based *dhimma* to a rights-based citizenship reflects both a change in power dynamics and an increasing internalisation of human dignity as a foundational Islamic value.

Conclusion

The tension between classical sharia and modern views on non-Muslim dignity is not a conflict between immutable texts and foreign values. It is, rather, a debate over how best to realise the Quran's affirmation of human honour within rapidly changing social realities. The classical dhimma system was a sophisticated legal apparatus for its time, but it was a product of imperial contexts that have largely vanished. Modern Muslim thought, whether expressed through maqasid-based jurisprudence, citizenship fiqh, international declarations, or even AI-assisted ethical modelling, seeks to retrieve the universalism of the Quran and to secure a permanent place for every human being, regardless of creed, within a community of mutual respect and equal dignity.

SEGMENTED DATA (1)

Classical sharia versus modern views on non-Muslim dignity

For centuries, the Islamic legal tradition elaborated detailed rules governing relations between Muslims and non-Muslims. Those rules were embedded in a context of Muslim political dominance and a worldview in which religious identity largely defined one's legal and social standing. Today, many Muslims live as minorities in pluralistic societies, and contemporary discourses on human rights have prompted a re-examination of those classical norms. The core question is whether sharia can accommodate a universal conception of human dignity that is independent of faith. This article contrasts the classical framework with modern interpretations, highlighting the role of Arabic terminology, historical context, Quranic foundations, the major juristic schools, the orientalist critique, and an emerging humanistic approach that enlists artificial intelligence.

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